

**SUBSTITUTE FOR
HOUSE BILL NO. 5921**

A bill to amend 1975 PA 46, entitled
"An act to create the office of the legislative corrections
ombudsman; to prescribe the powers and duties of the office, the
ombudsman, the legislative council, and the department of
corrections; and to provide remedies from administrative acts,"
by amending sections 7, 11, 12, 13, and 14 (MCL 4.357, 4.361,
4.362, 4.363, and 4.364), section 7 as amended by 1998 PA 318,
section 11 as amended by 1995 PA 197, section 12 as amended by 1982
PA 170, and section 13 as amended by 2018 PA 571.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 7. ~~Upon~~ **On** receiving a complaint from a ~~legislator or a~~
2 ~~prisoner~~ **complainant** under section 4 and deciding to investigate
3 the complaint, the ombudsman shall notify the complainant, the
4 prisoner or prisoners affected, and the department. If the



1 ombudsman declines to investigate, the ombudsman shall notify the
 2 complainant, in writing, and inform the prisoner or prisoners
 3 affected of the reasons for the ombudsman's decision.

4 Sec. 11. Before announcing a conclusion or recommendation that
 5 expressly or by implication criticizes a person or the department,
 6 the ombudsman shall consult with that person or the department.

7 When publishing an opinion adverse to the department, or any
 8 person, the ombudsman shall include in that publication a statement
 9 of reasonable length made to ~~him or her~~ **the ombudsman** by the

10 department or person in defense or mitigation of the action if that
 11 statement is provided ~~within a reasonable period of time as~~

12 ~~determined by the council. The ombudsman may request to be notified~~
 13 ~~by the department, within a specified time, of~~ **not later than 30**

14 **business days after the consultation with the department or person.**

15 **The department may request 1 extension of 14 business days to**

16 **provide the statement. The ombudsman shall report to the council if**

17 **the department fails to provide a response within the time limit**

18 **provided under this section. The department shall notify the**

19 **ombudsman not later than 30 business days after** any action **is** taken

20 on any recommendation presented. The ombudsman shall notify the

21 complainant of the actions taken by the office and by the

22 department **not later than 45 business days after the action is**

23 **taken.**

24 Sec. 12. (1) The ombudsman shall submit to the council and the
 25 legislature an annual report on the conduct of the office **and make**
 26 **the report available on the ombudsman's website. The annual report**
 27 **must include all of the following:**

28 (a) All of the following information for complaints:

29 (i) The total number of complaints that were received,



1 investigated, denied, resolved, unsubstantiated, or undecided.

2 (ii) The number of complaints received concerning each
3 correctional facility.

4 (iii) The number of complaints filed, broken down by subject
5 matter, including, but not limited to, racial discrimination and
6 medical treatment issues.

7 (b) Significant issues that were investigated.

8 (c) Each recommendation made to the department.

9 (d) The department's response to each recommendation.

10 (2) The ombudsman shall make monthly reports available on the
11 ombudsman's website that include for each month the information
12 described in subsection (1) (a).

13 Sec. 13. (1) A prisoner, **prisoner advocate, corrections**
14 **employee, or family member** must not be penalized in any way by an
15 official or the department as a result of filing a complaint,
16 complaining to a legislator, or cooperating with the ombudsman in
17 investigating a complaint.

18 (2) A person or the department shall not hinder the lawful
19 actions of the ombudsman or employees of the office, or willfully
20 refuse to comply with lawful demands of the office.

21 (3) The department shall not take disciplinary action against
22 an employee for communicating with the ombudsman.

23 Sec. 14. The authority granted the ombudsman is in addition to
24 the authority granted under the provisions of any other act or rule
25 under which the remedy or right of appeal or objection is provided
26 for a person, or any procedure provided for the inquiry into or
27 investigation of any matter. The authority granted the ombudsman
28 ~~shall~~**must** not be construed to limit or affect the remedy or right
29 of appeal or objection and ~~shall~~**must** not be ~~deemed~~**considered** part



1 of an exclusionary process.

2 Enacting section 1. This amendatory act does not take effect
3 unless House Bill No. 5920 of the 103rd Legislature is enacted into
4 law.